



CHAPTER v.

An Act to constitute a body of Trustees for the purpose of A.D. 1914.
acquiring the Crystal Palace and Park and to empower
them to hold and manage the same as a place of
public resort and recreation and for other purposes.

[30th April 1914.]

WHEREAS it would be of great local and public advantage if the lands and buildings known as the Crystal Palace and Park situate partly in the metropolitan boroughs of Camberwell and Lewisham in the county of London and partly in the urban districts of Beckenham and Penge in the county of Kent were vested in a body of Trustees to be maintained and managed by them as a place for education and recreation and for the promotion of industry commerce and art:

And whereas it is expedient to incorporate a body of Trustees consisting of representatives of the corporation of the City of London the London County Council the councils of the metropolitan boroughs of Lambeth Lewisham and Wandsworth the corporation of Croydon the urban district councils of Beckenham and Penge and of certain other authorities and persons as by this Act provided:

And whereas it is expedient to empower the Trustees so incorporated to acquire maintain and manage the said palace and park and other lands and to execute and perform the powers and duties conferred and imposed upon them by this Act:

And whereas by the Local Authorities Contributions (Crystal Palace) Act 1913 and the London County Council (General Powers) Act 1913 the authorities therein specified and other authorities were empowered to contribute towards the acquisition

A.D. 1914. of the Crystal Palace and Park and have conditionally agreed to contribute the sums which they are by those Acts respectively authorised to contribute:

And whereas certain private persons have made or have agreed to make contributions for the like purpose:

And whereas it is expedient to empower the authorities in this Act in that behalf mentioned to contribute towards the purposes of this Act other than the acquisition of the Crystal Palace and Park and to apply to such contributions certain of the provisions of the Local Authorities Contributions (Crystal Palace) Act 1913 as in this Act provided:

And whereas it is expedient to confer on the Trustees such powers and to make such other provisions as are in this Act contained:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Crystal Palace Act 1914.

Interpretation.

2. Unless the context shall otherwise require in and for the purposes of this Act the expressions—

“The Crystal Palace and Park” means and includes certain freehold lands buildings and hereditaments commonly known as the Crystal Palace and Park situate in the metropolitan boroughs of Camberwell and Lewisham in the county of London and the urban districts of Beckenham and Penge in the county of Kent containing two hundred acres or thereabouts and delineated and coloured red blue and yellow on a plan signed in triplicate by William Arthur Mount Esquire the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred and the said expression also means and includes all the fixtures fittings furniture statuary works of art machinery plant and all other effects whatsoever in the said palace and park and all buildings and other erections on the said lands;

“The signed plan” means the plans so signed as aforesaid;

“The palace” means and includes the buildings commonly known as the Crystal Palace together with so much of the lands now held in connection therewith as extends down to the lower terrace (including the lower terrace) and delineated and coloured red on the signed plan ;

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“The park” means and includes the lands now held in connection with the palace below the lower terrace and the lands now let on lease or in hand for the purpose of such letting (being respectively the lands coloured blue and yellow on the signed plan) and any other lands other than the palace which may hereafter be acquired by the Trustees under the provisions of this Act ;

“Contributing authorities” means the authorities mentioned in the First Part of the First Schedule to this Act and any other county council county borough or borough council or district council who shall either solely or jointly with some other county council county borough or borough council or district council contribute to the purchase of the Crystal Palace and Park or to the other purposes of this Act such a sum as the Trustees may decide shall entitle such contributors to representation on the body of Trustees ;

“Representative Trustees” means Trustees appointed by contributing authorities ;

“Nominated Trustees” means the persons mentioned in the Second Part of the First Schedule to this Act and any other person who shall hereafter be co-opted by the Trustees under this Act ; and

“The Trustees” includes the representative Trustees and nominated Trustees for the time being.

3. One of the signed plans shall be deposited in each of the following offices namely the Office of the Clerk of the Parliaments House of Lords the Private Bill Office of the House of Commons and the office of the town clerk of the city of London.

Deposit of
signed plans.

4. There shall be for the execution of the purposes and powers of this Act a body of Trustees consisting of representatives of the contributing authorities and the persons mentioned in the Second Part of the First Schedule to this Act.

Constitution
of Trustees.

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Incorporation of Trustees.

5. The Trustees thus constituted shall be a body corporate by the name of "The Crystal Palace Trustees" with perpetual succession and a common seal and with power to hold land for the purposes of their constitution without any licence in mortmain and to dispose of or deal with land by way of sale lease exchange or mortgage for any purpose not inconsistent with the objects of this Act.

Representative Trustees.

6.—(1) Each of the contributing authorities specified in the First Part of the First Schedule to this Act who shall have paid the contribution therein set opposite to their name shall be entitled to appoint a representative or representatives on the body of Trustees constituted by this Act not exceeding the number set opposite their name in the said schedule.

(2) If any authority solely or two or more authorities jointly contribute to the purchase of the Crystal Palace and Park or to the other purposes of this Act a sum or sums which alone or together make such a total as the Trustees may decide shall entitle them to representation on the body of Trustees they shall be entitled to appoint a representative or joint representative as the case may be on such body. Such appointment shall in the case of a joint representative be made in accordance with such conditions as may be agreed on between the authorities entitled to appoint or as in default of such agreement shall be prescribed by the Trustees.

(3) Each contributing authority specified in the First Part of the First Schedule to this Act who shall have paid the contribution therein set opposite to their name shall appoint their first representative or representatives as the case may be within three months after the passing of this Act and any other authority or authorities becoming a contributing authority shall appoint their first representative or representatives within three months after becoming a contributing authority. Any such representative may or may not be a member of the contributing authority making the appointment.

(4) In the month of February in the year one thousand nine hundred and eighteen and in every subsequent month of February one third of the representative Trustees for the time being shall retire from office or if their number be not a multiple of three then the number nearest to one third shall retire from office and the representative Trustees to retire in every year shall be those who have been longest in office since

their last appointment but as between persons who became Trustees in the same month those to retire shall unless they otherwise agree among themselves be determined by lot. A.D. 1914.

(5) The representative Trustees shall come into office on their appointment and shall hold office till the date of the next ensuing appointment and shall be eligible for reappointment.

(6) Each of the contributing authorities whose representative or representatives shall retire in the month of February in any year shall in the preceding December or January appoint a representative or representatives as the case may be to fill the place or places of their retiring representative or representatives who shall pending the appointment of their successors continue to hold office.

(7) Any casual vacancy among the representative Trustees occurring by death resignation or otherwise shall be filled by the contributing authority or authorities which appointed the vacating Trustee at any time within three months after its occurrence and a Trustee appointed under this subsection shall hold office so long only as the vacating Trustee would have been entitled to hold office.

7.—(1) Each person mentioned in the Second Part of the First Schedule to this Act shall be a nominated Trustee and the Trustees may from time to time after the first day of October one thousand nine hundred and fourteen co-opt such additional nominated Trustees as the Trustees may think fit and may reappoint any retiring or retired nominated Trustee provided that the total number of nominated Trustees shall never exceed the total number of representative Trustees. Nominated Trustees.

(2) In the month of January in the years one thousand nine hundred and eighteen one thousand nine hundred and nineteen and one thousand nine hundred and twenty respectively one third of the nominated Trustees mentioned in the Second Part of the First Schedule to this Act (excluding the Lord Mayor of the city of London and the chairman of the London County Council for the time being) shall retire from office and those to retire in each such year shall unless they otherwise agree among themselves be determined by lot.

(3) Except as hereinbefore provided in the case of persons mentioned in the Second Part of the First Schedule to this Act no nominated Trustee shall hold office for a longer period than

A.D. 1914. three years but shall be eligible for reappointment and every nominated Trustee who shall not have attended a meeting for the period of one year and shall not have obtained leave of absence from the Trustees shall vacate his office ipso facto but shall be eligible for reappointment.

Disqualifi-
cation of
Trustees.

8. Any Trustee who becomes bankrupt or compounds with his creditors or submits his affairs to liquidation shall cease to be a Trustee.

Resignation
of Trustees.

9. Any Trustee may resign his office by notifying in writing his intention so to do to the clerk of the Trustees.

Trustees not
to be inter-
ested in
contracts.

10. Any Trustee who accepts any employment of profit under the Trustees or is interested in any contract made by the Trustees shall thereupon cease to be a Trustee but a Trustee shall not be deemed to be interested in a contract within the meaning of this section by reason only of his being a shareholder or director in a company contracting with the Trustees or of his being interested in any sale or lease of lands but he shall not vote or take part in the discussion in respect of any such contract sale or lease.

Meetings
and proceed-
ings of
Trustees.

11. Meetings of the Trustees shall be held and their proceedings shall be conducted in accordance with the rules as to meetings and proceedings contained in the Second Schedule to this Act and subject to this Act the Trustees may regulate their own procedure.

Validity and
minutes of
proceedings
of Trustees.

12.—(1) The constitution or any act or proceeding of the Trustees shall not be questioned on account of any vacancy in their body.

(2) A defect in the qualification or appointment of any person acting as a Trustee shall not be deemed to vitiate any proceedings of the Trustees in which he has taken part in cases where the majority of Trustees present at such proceedings are duly entitled to act.

(3) Any minute made of proceedings at meetings of the Trustees if signed either at the meeting of the Trustees at which such proceedings took place or at the next ensuing meeting of the Trustees by any person purporting for the time being to be the chairman of the meeting shall be receivable in evidence of such proceedings in all legal proceedings without further proof and every meeting of the Trustees where minutes

of the proceedings have been so made shall be deemed to have been duly convened and held and all the Trustees present to have been duly qualified. A.D. 1914.

13. The Trustees may purchase by agreement subject to any existing leases tenancies licences and agreements the Crystal Palace and Park and may also from time to time purchase any lands adjoining any part thereof or convenient to be held therewith and may enter into and carry into effect any contracts or agreements necessary or proper for the purpose and the Trustees shall hold the palace and the park for the purposes and subject to the provisions set forth in this Act Provided that the price to be paid by the Trustees for the acquisition of the Crystal Palace and Park shall not exceed the sum of two hundred and thirty thousand pounds.

Power of Trustees to purchase Crystal Palace and Park and other lands.

14. The Trustees shall have the entire control and management of the palace and the park as a place for education and recreation and for the promotion of industry commerce and art and subject to existing leases tenancies licences and agreements and to the proviso to this section they may exercise the following powers (that is to say):—

Management of palace and park.

- (1) They may maintain alter extend and repair the palace and other buildings and may improve and extend the park and appropriate lay out form fence and maintain grounds for cricket and other games sports amusements meetings assemblies and other purposes and also gardens roads walks fences plantations ornamental lakes and spaces for military drill and exercise and they may also pull down and remove the whole or any portion of the palace or other buildings and may construct new buildings and erections in lieu thereof or in addition thereto:
- (2) They may close the whole or any portion of the palace and the park and may make such reasonable charge as they think fit for admission to the palace or any part thereof and to any portion of the park which may be set aside or let in accordance with the provisions of this Act:
- (3) They may set aside or let for such period and subject to such conditions as they think fit the whole or any portions of the palace or the park for the exclusive use of any educational institution or for the purposes

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of a library or any exhibition show or display or any club or entertainment or for any recreation or sport or amusement or for stalls or for shops or for any purpose of public utility instruction or benefit and may authorise the lessees to erect buildings and to make charges for admission to any part of the palace or the park let to them. Provided that in setting aside any portion of the park for any club the Trustees shall give a preference so far as possible to those clubs whose membership mainly consists of persons resident in the district of any contributing authority :

- (4) They may themselves provide and maintain such educational institutions in the palace and the park as they think fit and may make such charges to students attending the same as they think fit :
- (5) They may purchase and hire works of art plant furniture and other appliances and things and may themselves provide such amusements in the palace or the park or any parts thereof as they think fit and may supply or let the right of supplying refreshments in any part or parts of the palace or the park together (if they think fit) with the exclusive right to use any refreshment rooms or stalls and may advertise the palace and the park and the attractions thereof :
- (6) They may appoint pay and remove such officers and servants as may be necessary for the purposes of this Act :
- (7) They may raise on mortgage of the palace and of the park (excluding the lands coloured blue on the signed plan) or any part thereof any sums of money that may be necessary for the purposes of this Act and may sell exchange or let on lease or otherwise any portion of the park (excluding the lands coloured blue on the signed plan) :
- (8) They may generally do any act or thing which may in the judgment of the Trustees appear calculated to promote the objects and purposes of this Act :

Provided always that not less than twenty acres of the park shall be open to the public free of charge on every day and

the greater portion of the lands coloured blue on the signed plan shall be open to the public free of charge on every day except not more than fifty days in each year of which fifty days not more than fourteen days shall at any one time be consecutive or be in any one month. A.D. 1914.

15. The Trustees may appoint and dissolve a management committee and such other committees as they may think fit and may delegate to such committee or committees any of the powers conferred upon them by this Act except the power to admit new contributing authorities to co-opt Trustees or appoint committees of the Trustees to erect new buildings or pull down any portion of the palace or to sell mortgage or exchange or to let for periods exceeding six months any of the property of the Trustees. Delegation of powers.

16. The Trustees may make byelaws for regulating the use of the palace and the park and the conduct of persons resorting to or using the same and the conditions on which dogs or other animals may be admitted to the palace and the park and any other matters or things requiring regulation in the interests of order and of the general public. Power to make bye-laws.

17. All the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates exclusively to byelaws made by a rural sanitary authority) shall apply to all byelaws from time to time made by the Trustees as if the Trustees were a local authority within the meaning of those sections and the clerk of the Trustees were the clerk of the local authority. Application of Public Health Act provisions as to byelaws.

18. Nothing in this Act contained shall exempt the Trustees from complying with the byelaws of any local authority of the borough or district in which it is proposed to erect any temporary or other buildings in the palace or park Provided that the main building of the palace conservatories and waterworks and the conveniences and other works immediately connected therewith shall be exempt from any byelaws and regulations as to new buildings in force in any such borough or district. Building byelaws.

19. The councils of the counties of Middlesex Kent Surrey and Essex and of any county borough borough urban and rural district within those counties and of any metropolitan borough or any of them may with the sanction of the Local Government Board contribute towards the purposes of this Act other Power to public authorities to contribute.

A.D. 1914. — than the acquisition of the Crystal Palace and Park and the provisions of the Local Authorities Contributions (Crystal Palace) Act 1913 shall so far as applicable apply to any contribution made under this section but nothing in this section shall be deemed to impose any obligation so to contribute.

Local authorities not to be obliged to contribute to expenses.

20. Nothing contained in this Act shall be construed as imposing any obligation or liability upon any of the contributing authorities named in the First Part of the First Schedule to this Act to make any contribution towards any of the expenditure incurred by the Trustees in the acquisition maintenance management or administration of the Crystal Palace or otherwise under this Act.

Income and expenditure of Trustees.

21. The sums contributed by the contributing authorities and others for the purposes of this Act shall be applied first in discharge of the purchase money to be paid for the Crystal Palace and Park and the legal and other costs charges and expenses of and incidental to the said purchase and any surplus thereof and all other capital moneys revenue and income received by the Trustees shall be applied in the exercise and discharge by the Trustees of their powers and duties under this Act and in the payment of all expenses properly incurred by them and they may if they think fit establish and accumulate a reserve and other funds to meet contingencies or any extraordinary expenditure or purpose Provided that any income derived solely from the use of the lands coloured blue on the signed plan or any part thereof shall so far as the Trustees shall consider necessary for the proper upkeep be devoted primarily to the maintenance thereof Provided also that any interest paid by the Trustees on moneys raised on mortgage shall not be treated as an expense of maintenance.

Accounts and audit.

22.—(1) Proper accounts shall be kept by the Trustees of all their receipts and expenditure under this Act and such accounts shall be annually audited by a district auditor appointed by the Local Government Board.

(2) Stamp duties shall be charged in respect of the annual audit of the accounts of the Trustees in like manner as if the Trustees were a local authority within the District Auditors Act 1879 and sections 2 3 6 and 7 of that Act shall apply to such audit accordingly.

(3) A copy of the audited accounts and of any report of the auditor thereon shall within one month after the audit be

furnished by the Trustees without charge to each contributing authority and shall also be deposited with the town clerk of the city of London and with the clerk of the Trustees at their respective offices for public inspection.

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23. A Trustee shall not be subject to any personal liability in respect of anything done or suffered by the Trustees under this Act.

Trustees not
personally
liable.

24. The costs charges and expenses preliminary to and of and incidental to preparing obtaining and passing this Act shall be paid by the corporation of the city of London out of city's cash.

Costs of
Act.

A.D. 1914. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

FIRST PART.

	Amount of Contribution.	Number of Representatives.
	£	
Corporation of the city of London - - - -	20,000	6
London County Council - - - - -	30,000	6
Corporation of Croydon - - - - -	20,000	4
Metropolitan Borough Council of Lewisham - -	10,100	2
Do. do. Lambeth - - - - -	10,000	2
Do. do. Wandsworth - - - - -	4,000	1
Beckenham Urban District Council - - - - -	5,000	1
Penge Urban District Council - - - - -	5,000	1

SECOND PART.

The Lord Mayor of the city of London for the time being.
The Chairman of the London County Council for the time being.
The Earl of Plymouth, C.B.
Alderman Sir Wm. P. Treloar, Bt.
Sir Edward Coates, Bt., M.P.
Alderman Sir David Burnett, Bt.
Sir R. Melvill Beachcroft, Kt.
Sir John W. Benn, Kt.
Sir Richard Stapley, Kt.
Ernest I. Husey, Esq., M.V.O.
Rev. William Perowne Holmes.
Frederick Hall, Esq., M.P.
Richard Burbidge, Esq.
George Cosens, Esq.

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THE SECOND SCHEDULE.

MEETINGS AND PROCEEDINGS OF TRUSTEES.

1. The Trustees shall hold a meeting to be called the annual meeting in the month of January in every year or in such other month as they may from time to time fix and subject as aforesaid they may meet and adjourn as they think proper. The annual meeting shall be open to the public. Annual and other meetings.

2. Notice of every meeting specifying its time and place and the nature of the business to be transacted thereat shall be given by circular letter to every Trustee at least three days before the date fixed for the meeting but non-receipt of notice by any Trustee shall not of itself invalidate the proceedings of any meeting at which a quorum is present for the transaction of business. Notice of meetings.

3. To constitute a meeting of the Trustees at least eight Trustees must be present. Quorum.

4. The Trustees shall at their annual meeting in each year appoint a chairman and vice-chairman of their meetings for the ensuing year. If neither the chairman nor vice-chairman is present at the time appointed for holding any meeting or within fifteen minutes afterwards the Trustees present shall choose one of their number to be chairman of such meeting. Chairman.

5. Every question at a meeting shall unless otherwise expressly provided by any enactment for the time being in force be determined by a show of hands. Provided that a quorum be present when the vote is taken. Decision of questions.

6. In case of an equal division of votes the chairman of the meeting shall have a second or casting vote. Casting vote of chairman.

7. The Trustees may from time to time make such regulations as to the quorum of any committee appointed by them and otherwise in relation thereto as they may think proper and unless otherwise directed by regulations so made the quorum of a committee shall consist of two Trustees. Quorum of committees.

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